

**BEFORE THE FEDERAL MARITIME COMMISSION**

INTERMODAL MOTOR CARRIERS CONFERENCE,  
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT  
ASSOCIATION, INC., CONSOLIDATED CHASSIS  
MANAGEMENT, LLC, CMA CGM S.A., COSCO  
SHIPPING LINES CO. LTD., EVERGREEN LINE  
JOINT SERVICE AGREEMENT, FMC NO.  
011982, HAPAG-LLOYD AG, HMM CO.  
LTD., MAERSK A/S, MSC MEDITERRANEAN  
SHIPPING COMPANY S.A., OCEAN NETWORK  
EXPRESS PTE. LTD., WAN HAI LINES LTD., YANG  
MING MARINE TRANSPORT CORP., AND ZIM  
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

**COMPLAINANT’S UNOPPOSED MOTION TO DEPOSE RESPONDENTS’  
REBUTTAL EXPERT, DR. JAMES D. REITZES, AFTER APRIL 1, 2022**

Complainant Intermodal Motor Carriers Conference of the American Trucking Associations (“IMCC”) respectfully moves to depose one of Respondents’ rebuttal experts, Dr. James D. Reitzes, after the April 1, 2022, expert discovery cutoff. Respondents do not oppose this motion.

On March 18, 2022, Respondents served the rebuttal expert report of Dr. James D. Reitzes. The parties scheduled Dr. Reitzes’s deposition for March 31. Due to illness of the attorney who will depose Dr. Reitzes, the parties agreed to reschedule the deposition of Dr. Reitzes. The parties are discussing the new date, but presently anticipate the deposition will occur on either April 7 or 8, which are after the April 1 expert discovery cutoff, but before the

April 15 completion of discovery deadline. The parties will complete all other expert depositions by April 1. Complainant submits that this rescheduled deposition of Dr. Reitzes will not impact any other deadline in this matter.

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| <b>DATED:</b> March 30, 2022 | Respectfully submitted,                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
|                              | <p>By: <u>/s/ Daniel Vitelli</u><br/>W. Stephen Cannon<br/>David D. Golden<br/>Seth D. Greenstein<br/>Richard O. Levine<br/>Allison F. Sheedy<br/>J. Wyatt Fore<br/>Paulette Rodriguez Lopez<br/>Janice Johnson<br/>Osob M. Samantar<br/><b>CONSTANTINE CANNON LLP</b><br/>1001 Pennsylvania Avenue, NW<br/>Suite 1300 N<br/>Washington, DC 20004<br/>Phone: 202-204-3500<br/>scannon@constantinecannon.com</p> <p>Daniel Vitelli<br/><b>CONSTANTINE CANNON LLP</b><br/>335 Madison Avenue<br/>New York, NY 10017<br/>Phone: 212-350-2700<br/>dvitelli@constantinecannon.com</p> <p>Richard Pianka<br/>American Trucking Associations, Inc.<br/>950 N. Glebe Rd. Ste. 210<br/>Arlington, VA 22203<br/>(703) 838-1889<br/>rpianka@trucking.org<br/><i>Attorneys for Complainant</i><br/><i>Intermodal Motor Carriers Conference of the</i><br/><i>American Trucking Associations</i></p> |

## **CERTIFICATE OF SERVICE**

I certify that, on March 30, 2022, a true and current copy of the foregoing Unopposed Motion was filed via electronic mail with the Secretary of the Federal Maritime Commission, and a copy was served via electronic mail on the following counsel:

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Dated: March 30, 2022

/s/ J. Wyatt Fore

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